

Annex 2 to Judgment No. 16.

ORDER

MADE ON AUGUST 15th, 1929.

1929.
August 15th.
File E. b. XX.*Before :*MM. ANZILOTTI, *President*,
HUBER, *Vice-President*,

LODER,

NYHOLM,

DE BUSTAMANTE,

ALTAMIRA,

ODA,

PESSÔA,

HUGHES,

NEGULESCO,

WANG,

*Judges,**Deputy-Judges,*Count ROSTWOROWSKI, *Judge ad hoc.*CASE CONCERNING THE JURISDICTION
OF THE INTERNATIONAL COMMISSION OF THE ODER
(EVIDENCE).

THE COURT,

composed as above,
after deliberation,
makes the following Order :The Permanent Court of International Justice,
Having regard to Article 48 of the Statute,Having regard to the Special Agreement for arbitration
signed on October 30th, 1928, between the Governments of
Czechoslovakia, Denmark, France, Germany, His Britannic
Majesty in Great Britain, and Sweden, on the one hand, and
the Government of Poland on the other ;Having regard to the Order made by the President of the
Court on March 26th, 1929, dispensing, amongst other things,
with the presentation by the Parties of written Replies in
this case ;

Having regard to the Memorials filed by each Party on April 15th, 1929 ;

Having regard to the Counter-Memorials filed by each Party on June 10th, 1929 ;

Whereas the Memorial of the Polish Government refers in several places to the work done in the preparation of the relevant articles of the Treaty of Versailles ; as extracts from the minutes containing the record of this work are also quoted therein ;

Whereas on the other hand, in the Counter-Memorial of the Six Governments, "His Britannic Majesty's Government in the United Kingdom, the Government of the Czechoslovakian Republic and the Government of the French Republic join with the Government of His Majesty the King of Denmark, the Government of the German Reich and the Government of His Majesty the King of Sweden in requesting the Court in the present case to follow its previous decisions in refusing to admit any recourse to such preparatory work for the purpose of putting upon a text an interpretation different from the plain meaning (*sens naturel*) of the language used" ; as, furthermore, they state that in their opinion "the production as evidence of the above-mentioned records can have no effect on the decision of the questions submitted to the Court, and is therefore unnecessary" ;

Whereas, in the same document, they formally request the Court to rule that the passages in the Polish Memorial containing the "references and quotations" in question "and the arguments based upon them must be disregarded", and also "to give a ruling upon this question at the hearing of the oral arguments" ;

Whereas the Court, before hearing the oral argument of the case on its merits, must give a decision upon the question of the admissibility as evidence in this case of the minutes and other documents in question ;

Invites the Agents of the Parties to submit at the hearing fixed for Tuesday, August 20th, at 10.30 a.m., and before any argument upon the merits, their observations and final submissions upon the said question, it being understood that the Court will pass upon this question immediately after

receiving such observations and submissions, and that the argument on the merits shall follow forthwith, unless the Court shall otherwise decide.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this fifteenth day of August, one thousand nine hundred and twenty-nine, in eight copies, one of which is to be deposited in the archives of the Court, and the others to be forwarded to the Agents of the Governments of Czechoslovakia, Denmark, France, Germany, His Britannic Majesty in Great Britain, and Sweden, as also to the Agent of the Government of Poland, respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.
